

Umesh Nath Pandey v. Purvanchal Vidyut Vitran Nigam Ltd. & Ors.

High Court of Judicature at Allahabad · Division Bench · 1 October 2018 · WRIT - C No. 32925 of 2018 · **Writ not pressed; liberty to pursue Supply Code clause 6.5.**

HEADNOTE

Where the consumer's counsel did not press a writ against the distribution licensee and sought liberty to take a remedy under clause 6.5 of the Electricity Supply Code, 2005, the High Court disposed of the petition as not pressed and granted that liberty. The grievance was not examined on merits.

FACTUAL SUMMARY

Umesh Nath Pandey filed a writ petition in the High Court of Judicature at Allahabad against Purvanchal Vidyut Vitran Nigam Ltd. and three others. The petition came before a Division Bench of Dilip B. Bhosale, Chief Justice, and Yashwant Varma, J. Counsel for the petitioner and for respondent nos. 2 and 3 were heard. The consumer's underlying grievance is not recorded. Petitioner's counsel did not press the writ and asked for liberty to pursue the Electricity Supply Code, 2005 grievance-redressal remedy.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

writ not pressed — liberty to clause 6.5

HOLDING

The writ petition against the distribution licensee was disposed of as not pressed, with liberty to the petitioner to take a remedy under clause 6.5 of the Electricity Supply Code, 2005. The Court did not adjudicate the underlying consumer grievance. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 Where the consumer's counsel did not press a writ against the distribution licensee and sought liberty to take a remedy under clause 6.5 of the Electricity Supply Code, 2005, the High Court disposed of the petition as not pressed and granted that liberty. The grievance was not examined on merits. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PETITIONER'S CONSUMER GRIEVANCE AGAINST PURVANCHAL VIDYUT VITRAN NIGAM LTD.

Petition not pressed; no examination of the claim. ¶ 1